

[*569] tenant for life * and trustees may respectively execute, make, and do, all necessary and proper deeds, instruments, and things.

29. **Additional powers.** — By sect. 57, sub-sect. (1), nothing in the Act is to preclude a settlor from conferring on the tenant for life, or the trustees of the settlement, any powers additional to or larger than those conferred by the Act; but by sub-sect. (2), any such additional or larger powers are to operate and be exercisable in the like manner and with all the like incidents, effects, and consequences, as if they were conferred by the Act, unless a contrary intention is expressed in the settlement.

30. **Tenant for life an infant.** — By sect. 60, where a tenant for life, or a person having the powers of a tenant for life under the Act, is an infant, or an infant would, if he were of full age, be a tenant for life, or have the powers of a tenant for life, the powers under the Act may be exercised on his behalf by the trustees of the settlement, and if there are none, then by such person and in such manner as the Court, on the application of a testamentary or other guardian or next friend of the infant, either generally or in a particular instance, orders. Under this section the Court in Ireland refused, where an infant was entitled to an undivided share of land, to appoint one of his co-owners to exercise on his behalf the powers of the Act, but required the appointment of an independent person (*a*). The Court in directing the mode of sale under this section can order it to be made out of Court (*b*).

31. **Tenant for life a married woman.** — By sect. 61, sub-sect. (1), the foregoing provisions of the Act do not apply in the case of a married woman; but by sub-sect. (2), a married woman entitled for her separate use, or entitled under any statute for her separate property or as a *feme sole*, is, without her husband, to have the powers of the Act; and by sub-sect. (3), where she is entitled otherwise than as aforesaid, she and her husband together are to have the powers. By sub-sect. (4), the provisions of the Act referring to a tenant

(*a*) *Re Greenville Estate*, 11 L. R. Ir. 138.

(*b*) *Re Price*, 27 Ch. D. 552.